

		Sustained as to Nos. 1 (best evidence, hearsay, irrelevant (as to photo)); 2 (multiple hearsay); 3-4 (lacks personal knowledge, hearsay). Objections To Agbayani Declaration: Sustained as to Nos. 1-4 (lacks personal knowledge, foundation, speculation, hearsay). Defendants to give notice.
3	Cavalry SPV I, LLC v. James Bowie	The unopposed Motion to be Relieved as Counsel of Record, filed by attorneys Thomas J. Prenovost and Brian D. Cronin as to the representation of James Bowie is GRANTED. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. Moving counsel is ordered to give notice of this ruling.
4	Centennial Realty Brokerage & Investment Group v. Wolfe	Plaintiff Centennial Realty Brokerage & Investment Corporation has demurred to the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey & Emily Wolfe Trust. Whereas the initial answer filed on May 18, 2023 contained a general denial and 41 affirmative defenses, the first amended answer, which was filed on May 31, 2023, contains a general denial and ten affirmative defenses. Nevertheless, plaintiff has demurred to all ten affirmative defenses. Code Civ. Proc. § 430.30 lists three grounds for demurrer to answer: (1) the answer does not state facts sufficient to constitute a defense; (2) the answer is "uncertain," which includes ambiguous, and unintelligible; and (3) when the answer pleads a contract, it cannot be ascertained whether the alleged contract is written or oral. Each ground must be in a separate paragraph and state whether it is directed to the entire answer or to specified defenses. CRC 3.1320(a). The demurrer (ROA 25) is convoluted but indicates that plaintiff is challenging the first, second, third, fourth, fifth, sixth, eighth, ninth, and tenth affirmative defenses as uncertain for various reasons, including that they do not refer to the specific causes of action to which they relate, that they are duplicative and redundant of other affirmative defenses, and that they are not properly brought against claims sounding in contract. It also indicates that plaintiff challenges the fourth, sixth, and seventh affirmative defenses as not stating sufficient facts to constitute a defense. A demurrer to an answer on the ground of uncertainty must specify in what way the answer is uncertain. See <u>Coons v. Thompson</u> (1946) 75 Cal.App.2d 687, 690. As previously mentioned, plaintiff contends that some of the affirmative defenses, particularly the first, second, third, fourth, fifth, eighth, and tenth affirmative defense are uncertain because they do not refer to the specific causes of action to which they are directed as required by Code Civ. Proc. § 431.30(g). This subdivision provides that defenses in an answer "shall be separately stated, and the several defenses shall

refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.”

However, as pointed out in defendants’ opposition, plaintiff is incorrect in this assertion, as two of these challenged affirmative defenses reference the particular causes of action to which they are directed. Specifically, the first and fifth affirmative defenses reference the causes of action to which they are addressed. Although the other challenged affirmative defenses may not explicitly identify specific causes of action as required by the Code, a fair reading of the allegations in these affirmative defenses indicates which claims in the complaint are being challenged. (See Code Civ. Proc. § 452, which provides that, “[i]n the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.”) In other words, the defenses are not so uncertain as to fail to give plaintiff notice of how defendants are challenging the claims in the complaint.

Plaintiff contends that the sixth, eighth, and ninth affirmative defenses, which are for “good faith through mistaken belief,” “action in bad faith,” and “frivolous action” are uncertain and unintelligible as well as duplicative and redundant of each other. Again, a fair reading of the allegations in the particular affirmative defenses gives plaintiff notice of how defendants are challenging the claims in the complaint.

Plaintiff additionally contends that the eighth affirmative defense is uncertain because it refers to “cross-defendants” when no cross-complaint has been filed. This appears to be a simple error on the part of the defendants that can be overlooked.

A demurrer to an answer on the ground of failure to state facts sufficient to constitute a defense is sometimes called a general demurrer and shares many characteristics with a general demurrer to a complaint. The Court may sustain a general demurrer to a defense that the law does not recognize, that lacks essential allegations of fact, or is stated in the form of conclusions. See Universal Land Co. v. All Persons (1959) 172 Cal.App.2d 739, 741; Youdall v. Kaufman (1921) 55 Cal.App.3d 363, 368.

The same rules for pleading of “ultimate facts” rather than “legal conclusions” that apply to allegations in a complaint apply to pleading defenses in an answer. A defendant who wishes to assert a particular defense must plead the essential facts of that defense in the answer. See Code Civ. Proc. 431.30(b).

Affirmative defenses should be pled whenever, in good faith and with the exercise of due care, counsel can identify facts on which to base them. Substantive law determines the issues on which the defendant has the burden of proof and thus the specific defenses available in response to an individual cause of action.

Plaintiff challenges the sufficiency of the allegations in the fourth, sixth, and seventh affirmative defenses, which are for estoppel,

		"good faith through mistaken belief," and comparative negligence, respectively. In the fourth affirmative defense, defendants allege that plaintiff's agents engaged in conduct and activities that estop plaintiff from seeking relief against defendants. They allege that, among other things, plaintiff's agents made misrepresentations to them to induce them into entering into the agreement. They also allege that plaintiff's agents turned away prospective buyers who would not permit plaintiff to represent them as well as the defendants and that plaintiff did not disclose the potential dual agency to defendants or obtain their informed consent. They also allege that plaintiff's agents falsely told defendants that certain buyers were not interested in purchasing the property. These facts are sufficient to set forth an affirmative defense of estoppel. The sixth affirmative defense alleges that the second cause of action in the complaint is barred if defendants are correct with respect to their allegations that plaintiff "engaged in the conduct referenced in several affirmative defenses above" and sufficient for them to "terminate" plaintiff." Although this affirmative defense could have been more clear, a fair reading indicates that defendants are contending that they believed they had a good faith reason to terminate their relationship with the plaintiff. The seventh affirmative defense is labeled as one for comparative negligence. Although a claim of comparative negligence is obviously not applicable to causes of action sounding in contract, this affirmative defense is specifically directed to the cause of action for breach of the implied covenant of good faith and fair dealing, and appears to be alleging bad faith on the part of the plaintiff rather than comparative negligence per se. The general and special demurrers of plaintiff Centennial Realty Brokerage & Investment Corporation to all ten affirmative defenses in the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey & Emily Wolfe Trust are OVERRULED. Defendants are to give notice.
5	Mann, et. al. v. Parkin, et. al.	The motion by Defendant/Cross-Complainant Drew Parkin ("Parkin"), to compel Plaintiff/Cross-Defendant Alex Mann ("Mann") to provide responses to Requests for Production, Set One, is DENIED. Parkin asserts that responses were not timely served and that he therefore seeks an order compelling responses without objections pursuant to CCP §2031.270. Parkin states that Requests for Production of Documents, Set One, were served by email on 5/25/23. A subsequent two week extension was granted to respond. This made the responses due on 7/12/23. Attached to his Opposition, Mann submits a copy of the responses along with a proof of service signed by Cliff Schneider showing the